

Meteorological station, Mini radio, Global Position System, Talkie walkie, Telemeter

Produit : Electronic / Measuring devices

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INDIA

Product's definition

Category

In which category the product is classified ?

It is classified in the category of 'Electronic Devices'.

Definition

What is the exact definition of the product ?
And if it exists, what is the interpretation of the authorities regarding it ?

No such Exact Definition.

Not Applicable.

Comments

Comments

No applicable Indian standards or mandatory regulations under Indian law .

Labelling

Language

In which language must the information on the product or on the packaging be indicated? If English is sufficient please indicate NA.

Note: Generally All the particulars and Labelling are made in English Language.

By The Legal Metrology (Packaged Commodities) Rules, 2011

Chapter II Provisions Applicable to Packages Intended for Retail Sale:

9. Manner in which declaration shall be made

4) The particulars of the declarations required to be specified under this rule on a package shall either be in Hindi in Devanagiri script or in English; Provided...

Mandatory labelling on product

What are the mandatory labelling on the product ?

The brand name may be permanently marked on the product.

Mandatory labelling on packaging

What are the mandatory labelling on the packaging ?

By The Legal Metrology (Packaged Commodities) Rules, 2011

Chapter II Provisions Applicable to Packages Intended for Retail Sale:

4. Regulation for pre-packing and sale etc., of commodities in packaged form.-... no person shall pre-pack or cause or permit to be pre-packed any commodity for sale, distribution or delivery unless the package in which the commodity is pre-packed bears thereon, or on a label is securely affixed thereto, such declarations as are required to be made under these rules.

6. Declarations to be made on every package- All product packages, to which the Packaging Rules apply, are required to bear certain declarations on their principal display panel.

1.

1. The name and address of the manufacturer, or where the manufacturer is not packer, the name and address of the manufacturer and packer and for any imported package the name and address of the importer shall be mentioned.
2. The common or generic names of the commodity contained in the package and in case of packages with more than one product, the name and number or quantity of each product shall be mentioned on the package.
3. The net quantity, in terms of the standard unit of weight or measure, of the commodity contained in the package or where the commodity is packed or sold by number, the number of the commodity contained in the package shall be mentioned.
4. The month and year in which the commodity is manufactured or pre-packed or imported shall be mentioned in the package...
5. Retail sale price – The retail sale price to be mentioned on the package must necessarily be the maximum retail price inclusive of all taxes. The price in Indian rupees and paise should be rounded off to the nearest rupee or 50 paise.
6. Country - It is now mandatory to declare on the product package, the name of the country of origin or manufacture or assembly in case of imported products.
7. No dual MRP - The Amendment prohibits provision of dual maximum retail price (MRP) on the products. Accordingly, no manufacturer, packer or importer is permitted to declare different MRP's on identical pre-packaged commodities unless otherwise permitted.
8. Every package shall bear the name, address, telephone number, E-mail address, if applicable, of the person who can be or the office which can be, contacted, in case of consumer complaints.
9. It shall not be permissible to affix individual stickers on the package for altering or making declaration required under these rules: Provided that for reducing the Maximum Retail Price (MRP), a sticker with the revised lower MRP (inclusive of all taxes) may be affixed and the same shall not cover the MRP declaration made by the manufacturer or the packer, as the case may be, on the label of the package.
10. It shall be permissible to use stickers for making any declaration other than the declaration required to be made under these rules.
11. Where a commodity consists of a number of components and these components are to be packed in two or more units, for sale as a single commodity, the declaration required to be made under sub-rule (1) shall appear on the main package and such package shall also carry information about the other accompanying packages or such declaration may be given on individual packages and intimation to that effect may be given on the main package and if the components are sold as spare parts, all declarations shall be given on each package.

7. Principal display panel its area, size and letter etc :

(2) (i) TABLE-II

Minimum Height of Numeral

Serial Number	Net quantity in weight / volume	Minimum Height in mm	
		Normal Case	When blown, formed, molded, embossed or perforated on container
1	Upto 100 cm sq.	1	2
2	Above 100 cm sq. and upto 5002 cm sq.		4
3	Above 500 cm sq. and upto 2500 cm sq.	4	6
4	Above 2500 cm sq.	6	6

(3) The height of letters in the declaration shall not be less than 1 mm height and when blown, formed, molded, embossed or perforated, the height of letters shall not be less than 2 mm.

Provided that the width of the letter or numeral shall not be less than one third of its height, except in the case of numeral '1' and letters (i), (l) and (I);

(4) the sub-rule (1)-(3) shall not apply if the information to be specified on such package under this rule is also required to be given by or under any other law for the time being in force.

8. Declaration Where to appear:- (1) Every declaration required to be made under these rules shall appear on the principal display panel:

Provided that the area surrounding the quantity declaration shall be free from printed information.

1. Above and below by a space equal to at least the height of the numeral in the declaration, and
2. To the left and right by a space at least twice the height of the numeral in the declaration.

9. Manner in which declaration shall be made;- (1) Every declaration which is required to be made on a package under these rules shall be-

(a) Legible and prominent;

(b) numerals of the retail sale price and net quantity declaration shall be printed, printed or inscribed on the package in a colour that contrasts conspicuously with the background of the label....

(3) Where a package is provided with an outside container or wrapper such container or wrapper shall also contain all the declarations which are required to appear on the package except where such container or wrapper itself is transparent and the declarations on the package itself are easily readable through such outside container or wrapper; provided...

Mandatory labelling on the instructions manual

What are the mandatory labelling on the instructions manual (if one is required) ?
In which format, do we have to deliver the instruction manual to our customers ?

Not Applicable

Warnings - General ones

Are general warnings required ? If yes, which ones ?

Not Applicable

Warnings - Specific ones

Are specific warnings required ? If yes which ones ?

Not Applicable

Target Age

Is there any target age applicable? If so, does it have to be indicated and in which form?

Not Applicable

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

By The Legal Metrology (Packaged Commodities) Rules, 2011

Chapter II Provisions Applicable to Packages Intended for Retail Sale:

20. Action to be taken on completion of inspection of packages at the premises of the manufacturer or the packer:- (1) If it appears from the report referred to in sub-rule (3) of rule 19 that,-

(a) the statistical average of the net quantity contained in the packages drawn as samples under that rule is lesser than the quantity declared on the packages or on the labels affixed thereto, or any such package shows an error in deficiency greater than the maximum permissible error, or

(b) any such package does not bear thereon or on label affixed thereto the declarations to be made under these rules, the Director, Controller or any Legal Metrology Officer shall take action as given below, namely:-

(i) seize the packages drawn by him as samples and shall take adequate steps for the safe custody of seized packages until they are produced in the appropriate court as evidence;

(ii) based on the evidence initiate action for violations of the provisions of the Act and these rules:

Provided that no such action shall be taken if fresh tests are carried out under sub-rule (4) of rule 19, but if after such fresh tests any error or omission as is referred to in this sub-rule is detected, the Director, Controller or any Legal Metrology Officer shall take appropriate action as specified in this sub-rule in accordance with the provisions of the Act against the manufacturer or, as the case may be, the packer.

(3) The disposal of the seized packages shall be made in accordance with the provisions of the Code of Criminal Procedure, 1973 (2 of 1974).

Chapter VII GENERAL

32. Penalty for contravention of Rules.-(1) Whoever contravenes the provisions of rules 27 to 31, he shall be punished with fine of four thousand rupees.

(2) Whoever contravenes any other provision of these rules, for the contravention of which no punishment has been provided either in the Act or in the rules, he shall be punished with fine of two thousand rupees.

Comments

Comments

By The Legal Metrology (Packaged Commodities) Rules, 2011

Chapter II Provisions Applicable to Packages Intended for Retail Sale:

18. Provisions relating to wholesale dealer and retail dealers: (Refer to authority attached)

19. Inspection of quantity and error in packages at the premises of the manufacturer or packer:- (Refer to authority attached)
21. Inspection of quantity and error in packages at the premises of the wholesale dealer or retail dealer :- (Refer to authority attached)
23. Deceptive packages to be repacked or in default to be seized: (Refer to authority attached)

Chapter IV EXEMPTIONS

26. Exemption in respect of certain packages: - Nothing contained in these rules shall apply to any package containing a commodity if-
- (a) the net weight or measurement of the commodity is ten gram or ten milliliter or less, if sold by weight or measurement.(**)

Chapter VI REGISTRATION OF MANUFACTURERS, PACKERS AND IMPORTERS

27. Registration of manufacturers, Packers and importers :(Refer to authority attached)
28. Registration of shorter address permissible :.. (Refer to authority attached)
29. Registration of manufacturers and packers, etc.: .. (Refer to authority attached)

Chapter VII GENERAL

31. (1) Any advertisement mentioning the retail ale price of the pre-packaged commodity shall contain a declaration as to the net quantity or number of the commodity contained in the package.
- (2) The font size of the net quantity in the advertisement shall be same as that of retail sale price.
30. Compilation of lists of manufacturers or packers and their circulation...
33. Repeal and savings ...

Environment

Recycling - Eco taxes

Which regulations concerning ecodesign and recycling apply to this product? Are there any ecotaxes applicable to this category of product?

Not Applicable

Labelling

What are the mandatory labellings to put on the product or on the packaging regarding the environmental rules ?

Not Applicable

Technical rules / Standards

Bluetooth, Ant+, GPS, Wifi...

Not Applicable

Certifications / Registrations

Certifications or registrations

Are there some certifications or registrations applicable to the product ?

Not Applicable

Laboratory

In case of mandatory certification/ registration that we must follow please precise the name and address of any laboratories where we can conduct them

Not Applicable

Comments

Comments

Conformity documents

Documents

What are the conformity documents ? Can you please list them ?

General documents will be required-in relation to establishment of business.

Format

Does it exist a specific format for the conformity documents ? If yes, can you please provide us an example in english ?

No Particular Format

Comments

Comments

Importation rules

General rules

What are the general rules in order to import the product ?

Generally, Importers are required to register with the DGFT to obtain an Importer Exporter Code Number (IEC) issued against their Permanent Account Number (PAN), before engaging in EXIM activities. After an IEC has been obtained, the source of items for import must be identified and declared.

IMPORT PROCEDURE

Step1 : File Bill of Entry with Business Identification Number (BIN)

Step 2: Determine rate of duty for clearance from warehouse

Step 3: File requisite documents with customs department

Step 4: Submit import report/ manifest

Step 5: Receive permission to import goods

Documents

What are the required documents ?

Mandatory Documents:

1. Importer Exporter Code issued from the DGFT
2. Bill of Entry
3. Examination Order generated by the EDI system of Customs

Optional Documents depending upon the type of Product being Imported:

1. Certificate of Origin issued by Authorized Person/ Agency at the place of manufacturing/ processing etc. of the food consignment. Certificate of Origin shall contain information on Country of Origin etc. Hence if the consignor is from a different country;
2. Stuffing list, Packing List;
3. Commercial invoice as mentioned in the Bill of Entry (BoE);
4. Bill of Lading as mentioned in the Bill of Entry (BoE) for sea consignment;
5. Air Way Bill as mentioned in the Bill of Entry (BoE) for air consignment;

Time period

In which time period may we obtain the right to import ?

It generally takes 45 to 60 days for completing the overall procedure from import clearance to Product reaching store shelf.

Administration

What is the administration in charge of importations ? Name and address ?

- Directorate General of Foreign Trade
- Central Board of Excise and Customs

Comments

Comments

Inspection of the product

Inspection method

Does it exist an inspection procedure applicable to the product ? If yes, which administration is in charge of ? Can you please describe the procedure ?

Not Applicable

Commercialization rules

Notification / Declaration

What are the general rules in order to comercialize a product ?
Is there a notification / declaration to do ?

Trade license will have to be acquired which is governed by Municipality Act- which will location specific.
Notification is location specific.

Documents

What are the required documents ?

General documents will be required-in relation to establishment of business.

Delay

What is the delay to obtain the right to commercialize ?

Not Applicable

Display in store

Is there some specific rules on the way to display the product in store ?

Not Applicable

Display on internet

Is there some specific mentions to display the product on internet ?

Information to consumers

Do some specific information to have be given to consumers when the product is placed on the market ?

Not Applicable

Comments

Comments

Administration

What is the administration in charge of commercialization ? Name and address ?

Department of Legal Metrology which comes under the Department of Consumer Affairs.

Documents